

**Medford Public Schools
Medford, Massachusetts**

**Medford School Committee
Committee of the Whole
May 15, 2014**

Minutes

The meeting was called to order by Vice Chairperson John Falco Jr at 7:00 p.m..in the Superintendent's Conference Room at Medford High School. Members present were Ann Marie Cugno, Erin DiBenedetto, John Falco, George Scarpelli, Robert Emmett Skerry Jr. and Paulette Van der Kloot (6 present and 1 absent). Also present was Superintendent Roy Belson.

All rose to salute the Flag.

Chairperson Falco stated that the purposes of the meeting was to review and discuss several major legal mandates that affect the Medford Schools and schools across the Commonwealth. Specifically:

- New student discipline law
- Amended school bullying law
- DCF mandated reporting requirement
- Renewal of Ethics Law Certification
- Implementation of Fingerprinting Law

Chairperson Falco then called upon the Superintendent for an overview on each of the matters.

The Superintendent suggested that the Committee take one item at a time for discussion following the Superintendent's presentation of each.

The key points that the Superintendent made on the new Student Discipline Law (Chapter 222 of the Acts of 2012) were as follows:

- Act is effective July 1, 2014
- It is a reaction to the overuse of "Zero Tolerance" policies for minor offenses
- The required procedures are very detailed
- Sped is unaffected since the new law very much mirrors current sped protocols
- Chapter 37H and 37H ½ are still in place
- Act requires ongoing educational services to students who are suspended/expelled.
- There will be a need to review and revise the current student handbooks
- Definition of expulsion is over 90 days removal from school

- In school suspension can be either more or less than 10 days. However, services must be provided.
- Long term suspension is removal from school for more than 10 days.
- Each school must develop a school wide educational service plan
- A student may be removed from school on an emergency basis for no more than two days.

The requirements of the new law will require budgetary consideration to support the various educational service plans. We are also working on modifications to the Curtis-Tufts alternative school. Some options could include in-school suspension during the school day, after school, evening school, online, blended tutoring, out placement.

The Committee discussion focused on the various types of programs that would provide real assistance to students who found themselves in this situation. More information is needed from DESE. Specific situations could be very unique and require a blend of services. It was pointed out that no special funding source has been identified by the state to support this work.

The Committee moved on to the amended “Bullying Law”. The Superintendent pointed out the following:

- Law goes into effect on July 25, 2014
- It revises elements of the existing law and expands protection by adding several new sections
- Certain populations are considered more vulnerable and will be given expanded protective considerations (example LGBTQ)
- There will be an annual reporting requirement to DESE
- Schools must administer a school climate survey every four years
- DESE may investigate school level and district level results and issues
- We must identify the specific steps we will take to support vulnerable students
- Plans must be in place for the fall of 2014.

Again there is a lot to do. Administrators will be working to revise handbooks and parental information and to prepare staff. The summer will be a busy period.

The Committee discussion focused on the various specialized plans that might be needed to deal with the various newly identified vulnerable student populations. Some students might fit into multiple categories.

There was concern that the victim could be punished because of the vulnerable status of the perpetrator. The Superintendent indicated that each case had to be looked at individually to determine the best intervention. Theory and best practices are not always the same.

The School Committee reviewed the new DCF reporting format. The Superintendent explained the following:

- A mandated reporter is anyone who works closely with children
- A report must be filed if there is “suspicion” of inappropriate behavior. It is not the job of the school or school employee to prove inappropriate behavior. We must report if we “suspect” such behavior.
- Initial reports should be done asap. A phone call can be made and followed up with the new form within 48 hours.

Recent situations have heightened the urgency of mandated reporting.

All personnel including the School Committee must renew their “Ethics” certification online every two years. Most of our employees need to do so at this time. School Committee members must do so this spring. The process is done online. (see attached).

The Fingerprinting Law (SAFIS) is now being implemented.

- All new employees as of July 1, 2013 must be fingerprinted (approximately 100 people). It does not apply to volunteers. Everyone will still be CORI checked including volunteers.
- All employees will need to be fingerprinted over the next three years.
- We are working with the designated agency to bring a van to Medford to facilitate compliance.
- Licensed employees must pay \$55 and non-licensed \$35.

This is another major undertaking for our school administration. We will be proposing extra help to meet our ever expanding personnel and human resources mandates.

Volunteers are not required to be fingerprinted.

On the motion of Mr. Skerry and seconded by Ms. Cugno the reports were accepted and referred to the regular meeting of May 19, 2014.

On the motion of Mr. Scaprelli seconded by Ms. DiBenedetto the meeting was adjourned at 8:46 p.m.

Respectfully Submitted,

John Falco
Vice Chairperson